

**TENTATIVE RULING FOR CIVDS1824405**  
**Department S24 - Judge Carlos M. Cabrera**

This courtroom follows California Rules of Court, rule 3.1308(a)(2) for tentative rulings. See also San Bernardino Superior Court Local 561. **If both sides do not appear, the tentative will simply become the ruling.**

Evers, et al v. Hughes, et al

Motion: Vacate Dismissal

Movant: Ronaldus FJ. Evers (Evers) and Penny Lee Wagner (Wagner), collectively  
Plaintiffs)

Respondent: Reydis Santos (Santos) and JP & RS Remodeling, LLC, (Remodeling LLC),  
collectively (Defendants)(Bohlender/Plaintiff)

**RELEVANT FACTUAL AND PROCEDURAL BACKGROUND**

On September 30, 2024, the parties stipulated extending the five-year deadline to bring the case to trial under Code of Civil Procedure to March 18, 2025. On October 15, 2024, the court signed and entered an order extending the five-year deadline according to the party's stipulation. On February 18, 2025, at a status conference hearing, with both counsel present, the court continued the status conference to June 25, 2025. On June 25, 2025, there was no appearance on Plaintiffs' behalf at a status conference. The Court set an order to show cause re: dismissal for July 28, 2025.

On July 24, 2025, attorney Michael T. Stoller substituted in as counsel of record for Plaintiffs. On July 28, 2025, the Court continued the trial setting conference at the request of Plaintiff's counsel to December 11, 2025. This hearing was subsequently continued to January 13, 2026, to allow counsel to discuss settlement and trial dates. Plaintiffs' counsel failed to appear at the January 13, 2026 further trial setting conference. The Court thereafter set an order to show cause re: dismissal for March 12, 2026. On March 12, 2026, Plaintiffs' counsel again failed to appear. The Court ordered the case dismissed with prejudice for lack of prosecution. On June 18, 2026, Plaintiffs filed the instant motion to vacate the dismissal on grounds of attorney fault. Defendants oppose.

**ANALYSIS**

The instant motion is brought under Code of Civil Procedure section 473, subdivision (b), which provides for mandatory relief from dismissal when accompanied by an affidavit of attorney fault. It states in pertinent part:

Notwithstanding any other requirements of this section, the court shall, whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney's sworn affidavit attesting to the attorney's mistake, inadvertence, surprise, or neglect, vacate any (1) resulting default entered by the clerk against the attorney's client, and which will result in entry of a default judgment, or (2) resulting default judgment or dismissal entered against the attorney's client, unless the court finds that the default or dismissal was not in fact caused by the attorney's mistake, inadvertence, surprise, or neglect. The court shall, whenever relief is granted based on an attorney's affidavit of fault, direct the attorney to pay reasonable compensatory legal fees and costs to opposing counsel or parties. However, this section shall not lengthen the time within which an action shall be brought to trial pursuant to [Section 583.310](#). (CCP§473(b))

Counsel's affidavit is sufficient to relieve the Plaintiffs of the March 12, 2026 order dismissing this matter with prejudice for failure to persecute. Plaintiff's counsel is correct that all that is being requested is to vacate the dismissal order and place this matter back to its procedure posture. This is a proper request. As such the court will vacate its order of dismissal to allow counsel to attend and argue the OSC re Dismissal hearing.

#### **RULING**

1. Plaintiff's Motion to Vacate the March 12, 202 order dismissing this matter with prejudice for failure to prosecute is GRANTED.
2. An OSC re: Dismissal under California Code of Civil Procedure Section 583.310 is set for hearing on December 10, 2026 at 9am in S24. Counsel shall file and serve any pleadings in support of or in opposition to dismissal on or before November 20, 2026. This matter is otherwise stayed.
3. Pursuant to CCP§473(c)(1)(A) attorney Michel T. Stoller is sanctioned \$1000. Monetary sanctions to be paid within 20 days directly to Defiant Law.
4. Movant to give Notice.